

lish his last will and testament, at any time, within thirty days after his sentence; and if any married person be sentenced for a term of seven or more years, and, pursuant to such sentence, shall have remained in confinement for the space of two years, it shall be lawful cause of divorce.

for life—but may make will. Two year's confinement cause of divorce, when.

§ 29. Every person, sentenced to imprisonment in the penitentiary for the offence of bribery, forgery, robbery, burglary, arson, larceny, perjury, subornation of perjury, or conspiracy to cheat, shall be incompetent, forever after, to give testimony in any court of justice, or any tribunal relating to any matter or thing whatever, and shall also be disqualified from serving on juries; and no pardon, granted by the governor in any one of the cases stated in this section, shall have the effect to remove the disability imposed, unless such pardon shall so express upon its face.

Sentence to penitentiary for certain offences renders convict incompetent to give testimony, &c.

§ 30. Upon all convictions on indictments under the sections of this chapter, which inhibit the keeping or exhibiting of any gaming table or bank, or which makes it penal for the owner or occupant of any house to permit or suffer the same to be used for the keeping or exhibition of any gaming table or bank, the attorney-general, or solicitor, shall be entitled to a fee of one hundred dollars; upon convictions on indictments under any other provision of the law against gaming, the attorney-general, or solicitor, shall be entitled to a fee of forty dollars; and upon all convictions in which the punishment shall be imprisonment in the penitentiary, the attorney-general, or solicitor, shall be entitled to a fee of twenty dollars, and on all other convictions, to a fee of five dollars, to be taxed in the bill of costs, and paid by the party convicted.

Fees of attorney-general and solicitor on convictions for keeping &c. of gaming table; for gaming, what;

for penitentiary offences—what; on other convictions, what.

§ 31. After every conviction and sentence for any offence made punishable by imprisonment in the penitentiary, the clerk shall issue a *fieri facias*, on the judgment which shall be rendered in favor of the state, in usual form, for the collection of the costs of the prosecution, and for the collection of the value of the property assessed by the jury, in larceny and other cases authorized by law.

Clerk to issue execution for costs &c. on conviction for penitentiary offence.

§ 32. That sheriffs, coroners and constables may be vested with ample power to enable them to discharge the duties devolved upon them, they are hereby authorized, in cases not otherwise provided for by this code, to summon to their aid a sufficient number of the *posse* of their county, to enable them to execute all process, both civil or criminal, or to arrest all offenders against the law, in cases in which they are authorized to proceed without process, or to convey all persons in custody, from place to place, pursuant to law; and every person, summoned by either of such officers for the purposes aforesaid, who shall refuse obedience to the summons, shall, on conviction, be fined in a sum not less than fifty and not exceeding three hundred dollars; and it shall be the duty of the officer to present to the grand jury, at the next term of the circuit court of the county, the case of such offender, that the same may be examined according to law.

When sheriff, coroner, or constable may summon the posse.

Penalty for failing to serve, when summoned.

§ 33. Any person, summoned by a sheriff, coroner or constable, as in the last section provided, shall not be liable to an action for obeying such summons, by reason of any defect or irregularity in the authority of such officer, as he did nothing more than was allowed, had his authority been regular and sufficient.

Not liable to action for obeying summons.

§ 34. The persons, summoned as aforesaid if employed as long a time as one day, shall be allowed the same compensation as is allowed to guards who aid in conveying convicts to the penitentiary, and shall be paid from the same fund, unless their services were

Compensation of persons so summoned.

How paid in civil cases.